That every individual has the fundamental right to reproductive freedom, including the ability to make and carry out decisions relating to one's own prenatal care, childbirth, postpartum care, contraception, abortion care, miscarriage management, and fertility care.

An individual's right to reproductive freedom shall not be, directly or indirectly, denied, burdened, or infringed upon unless justified by a compelling state interest achieved by the least restrictive means.

Notwithstanding the above, the Commonwealth may regulate the provision of abortion care in the third trimester, provided that in no circumstance shall the Commonwealth prohibit an abortion (i) that in the professional judgment of a physician is medically indicated to protect the life or physical or mental health of the pregnant individual or (ii) when in the professional judgment of a physician the fetus is not viable.

The Commonwealth shall not discriminate in the protection or enforcement of this fundamental right.

The Commonwealth shall not penalize, prosecute, or otherwise take adverse action against an individual based on such individual's own exercise of this fundamental right or such individual's own actual, potential, perceived, or alleged pregnancy outcomes, including miscarriage, stillbirth, or abortion. The Commonwealth shall not penalize, prosecute, or otherwise take adverse action against any individual for aiding or assisting another individual in exercising such other individual's right to reproductive freedom with such other individual's voluntary consent.

For the purposes of this section, a state interest is compelling only if it is for the limited purpose of maintaining or improving the health of an individual seeking care, consistent with accepted clinical standards of care and evidence-based medicine and does not infringe on that individual's autonomous decision making.

This section shall be self-executing. Any provision of this section held invalid shall be severable from the remaining portions of the section.

QUESTION 2 - BALLOT QUESTION

Should the Constitution of Virginia be amended to (i) remove the ban on same-sex marriage; (ii) affirm that two adults may marry regardless of sex, gender, or race; and (iii) require all legally valid marriages to be treated equally under the law?

EXPLANATION FOR VOTERS - QUESTION 2

Present Law

Marriages, civil unions, and other legal relationships with the same rights, benefits, and effects of marriage between persons of the same sex or gender are prohibited under Virginia's Constitution. This prohibition is no longer enforceable as a result of the United States Supreme Court decision in *Obergefell v. Hodges* in 2015, but the prohibition on marriages between persons of the same sex or gender remains in the state's Constitution. If the Supreme Court were to overturn its previous decision, that prohibition would be enforceable again.

Proposed Amendment

The proposed amendment removes the prohibition on marriages between persons of the same sex or gender from the Virginia Constitution's Bill of Rights. It is replaced with the fundamental right to marry, requiring the state to recognize and treat equally under the law any lawful marriage between two adult persons, regardless of the sex, gender, or race of either person. The proposed amendment prohibits the state from denying a marriage license to two adult persons because of their sex, gender, or race.

FULL TEXT OF AMENDMENT

[Proposed new language is underlined. Deleted old language is ~~stricken~~.]

ARTICLE I
BILL OF RIGHTS

Section 15-A. Marriage.

That ~~only a union between one man and one woman may be a marriage valid in or recognized by this Commonwealth and its political subdivisions~~ marriage is one of the vital personal rights essential to the orderly pursuit of happiness.

This Commonwealth and its political subdivisions shall not ~~create or recognize a legal status for relationships of unmarried individuals that intends to approximate the design, qualities, significance, or effects of marriage~~ deny the issuance of a marriage license to two adult persons seeking a lawful marriage on the basis of the sex, gender, or race of such persons. ~~Nor shall this Commonwealth or its political subdivisions create or recognize another union, partnership, or other legal status to which is assigned the rights, benefits, obligations, qualities, or effects of marriage~~ This Commonwealth and its political subdivisions shall recognize any lawful marriage between two adult persons and treat such marriages equally under the law, regardless of the sex, gender, or race of such persons.

QUESTION 3 - BALLOT QUESTION

Should the Constitution of Virginia be amended (i) to provide for the fundamental right to vote in the Commonwealth, (ii) to revise the qualifications of voters so that a person convicted of a felony is not entitled to vote during his period of incarceration but is automatically invested with the right to vote upon release from incarceration, and (iii) to update the existing prohibition on voting by persons found to be mentally incompetent to instead apply to persons who have been found to lack the capacity to understand the act of voting?

EXPLANATION FOR VOTERS
QUESTION 3

Present Law

Virginia's Constitution currently provides that a person who is convicted of any felony loses the right to vote for the rest of their life unless the Governor of Virginia takes administrative action to restore that specific person's right to vote. This is the only means of getting back the right to vote after a felony conviction.

The current constitutional provision also imposes a broad restriction, while using outdated terminology, on voting by persons found to be incapacitated. A person who is determined by a court to be incapacitated, regardless of the kind of incapacity, loses the right to vote, and only a court can restore the person's right to vote later.